

The Berar Laws Act, 1941

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Central Provinces And Berar - Act

The Berar Laws Act, 1941

CENTRAL PROVINCES AND BERAR

India

The Berar Laws Act, 1941

Act 04 of 1941

Published in Gazette of India on 17 March 1941

Not commenced

[This is the version of this document from 17 March 1941.]

[Note: The original publication document is not available and this content could not be verified.]

An Act to extend certain Acts to Berar.

WHEREAS by orders made under the Indian (Foreign Jurisdiction) Order in Council, 1902, the provisions of certain Acts 1 have from time to time been applied to, and are now, by virtue of such application, in force in, Berar;

AND WHEREAS it is expedient that those and certain other Acts should be extended to, and be, by virtue of such extension, in force in, Berar;

It is hereby enacted as follows:--

1.

Short title and commencement.

(1)

This Act may be called the Berar Laws Act, 1941 .

(2)

It shall come into force on such 2 date as the central Government may, by notification in the Official Gazette, appoint.

2.

Extension of certain Acts to Berar.

(1)

The Acts specified in the First Schedule and so much of any Act specified in the Second Schedule as relates to matters with respect to which the Central Legislature has power to make laws are hereby extended to, and shall be in force in, Berar; and in any enactment so extended, 3 notwithstanding anything contained in clause (7) of section 3 of the General Clauses Act, 1897 (10 of 1897 .), any reference to the States shall be construed as a reference to the States and Berar.

(2)

The Acts specified in the Third Schedule shall be amended in the manner set forth in the second column of that Schedule.

3.

Cesser of application of certain Acts to Berar. The application, if any, to Berar, made by order under the Indian (Foreign Jurisdiction) Order in Council, 1902 , of the Acts specified in the First Schedule, of so much of any Act specified in the second Schedule as relates to matters with respect to which the Central Legislature has power to make laws, and of the Indian Cotton Cess Act, 1923 (14 of 1923), shall cease to have effect: Provided that all appointments delegation, notifications, orders, bye- laws, rules and regulations, which have been made or issued under, or in pursuance of, any provision of any of the said Acts as applied to Berar by order under the said Order in Council, and which are in force at the commencement of this Act, shall be deemed to have been made or issued under or in pursuance of the corresponding provision of that Act as now extended to, and in force in, Berar.

1. The words" in force in the Provinces" omitted by the A. O. 1950. 2. The 1st August, 1941, see Gazette of India, 1941, Pt. I, p. 966. 3. Certain words omitted by the A. O. 1950.

4.

Removal of doubt. For the removal of doubt it is hereby declared that the Acts specified in the Fourth Schedule have ceased to have effect and are repealed in Berar.

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